

HOUSE No. 2000

The Commonwealth of Massachusetts

PRESENTED BY:

Alyson M. Sullivan-Almeida

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing statewide standards for sexual assault and domestic violence service providers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>1/16/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/30/2025</i>

HOUSE No. 2000

By Representative Sullivan-Almeida of Abington, a petition (accompanied by bill, House, No. 2000) of Alyson M. Sullivan-Almeida for an investigation by a special commission (including members of the General Court) relative to statewide standards for sexual assault and domestic violence service providers. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1780 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing statewide standards for sexual assault and domestic violence service providers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 3 of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by adding the following section:-

3 Section 76. (a) There shall be a permanent commission on sexual assault and domestic
4 violence service providers, which shall consist of 19 members as follows: 1 of whom shall be the
5 secretary of health and human services or their designee, who shall serve as chair; 1 of whom
6 shall be the director of the department of public health division of sexual and domestic violence
7 prevention and services; 2 of whom shall be members of the house of representatives, to be
8 appointed by the speaker of the house; 1 of whom shall be a member of the house of
9 representatives, to be appointed by the minority leader; 2 of whom shall be members of the

senate, to be appointed by the president of the senate; 1 of whom shall be a member of the senate, to be appointed by the minority leader; 1 of whom shall be the executive director of the governor's council to address sexual assault and domestic violence; 1 of whom shall be the attorney general or their designee; 1 of whom shall be the executive director of the Massachusetts office for victim assistance; 1 of whom shall be the executive director of Jane Doe Inc.: the Massachusetts Coalition Against Sexual Assault and Domestic Violence; 1 of whom shall be the executive director of the Victim Rights Law Center, Inc.; 1 of whom shall be the executive director of the New Bedford Women's Center, Inc.; 1 of whom shall be the executive director of the Boston Area Rape Crisis Center, Inc.; 1 of whom shall be the executive director of Pathways for Change, Inc.; 1 of whom shall be an advocate specialized in working with survivors with disabilities, to be appointed by the governor; 1 of whom shall be an advocate specialized in working with children who experienced trauma, to be appointed by the governor; 3 of whom shall be survivors of sexual assault or domestic violence, to be appointed by the governor. Members of the commission shall be citizens of the commonwealth who have demonstrated commitment to supporting survivors of sexual assault and domestic violence.

Biennially, every legislative session, the general court shall review the membership of the commission to ensure its makeup is tailored to its purpose and improved when necessary.

(b) Appointed members shall serve terms of 2 years and until their successors are appointed, or the member is reappointed by their appointing or nominating authority. Vacancies in the membership of the commission shall be filled by the original appointing authority for the balance of the unexpired term.

(c) The members of the commission shall receive no compensation for their services, but shall be reimbursed by the general court for any usual and customary expenses incurred in the performance of their duties.

(d) The commission shall be a resource to the commonwealth on issues affecting survivors of sexual assault and domestic violence. It shall be a primary responsibility of the commission to study the practices and service standards currently in place for sexual assault and domestic violence service providers, including any organization, board or program that provides specialized programs, support, residential programs or intervention services for victims of sexual assault or domestic violence. The commission shall meet to put forth recommendations for uniform minimum service standards for sexual assault and domestic violence programs throughout the commonwealth. The commission shall perform an ongoing review of its recommendations and their results to ensure its recommendations are narrowly tailored and improved when necessary.

(e) The powers of the commission shall include, but not be limited to, the following: (1) to use such voluntary and uncompensated services of private individuals, agencies and organizations as may from time to time be offered and required, including provision of meeting places and refreshments; (2) to hold regular, public meetings and to hold fact-finding hearings and other public events as the commission deems necessary; (3) to establish and maintain such offices as the commission deems necessary, subject to appropriation; (4) to acquire and direct a staff to perform its duties, subject to appropriation; (5) to enact by-laws for its own governance but not inconsistent with any general or special law; and (6) to recommend policies and make recommendations to agencies and officers of the commonwealth and local subdivisions of government to effectuate the purposes of this commission.

(f) (1) The commission may request information and assistance from state agencies as the commission requires.

(2) The commission may accept and solicit funds, including any gifts, donations, grants or bequests or any federal funds, for any of the purposes of this section. These funds shall be deposited in a separate account with the state treasurer, be received by the treasurer on behalf of the commonwealth, and be expended by the commission in accordance with law.

(g) (1) The commission shall report their recommendations relative to uniform minimum service standards for sexual assault and domestic violence service programs to the executive office of health and human services no later than 180 days following the passage of this act.

(2) Biennially, not later than June 30, the commission shall reassess and report on the uniform service standards for sexual assault on domestic violence service programs and any policy recommendations to the governor, secretary of health and human services and the clerks of the house of representatives and the senate.

SECTION 2. Chapter 6A is hereby amended by inserting after section 18Z the following section:-

Section 18AA. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:-

“Commission”, the permanent commission on sexual assault and domestic violence service providers established pursuant to section 76 of chapter 3.

“Sexual assault and domestic violence service provider”, any organization, board or program that provides specialized programs, support, residential programs or interventions for victims of domestic violence or sexual assault.

(b) The executive office of health and human services, in collaboration with the commission, shall promulgate uniform minimum service standards for sexual assault and domestic violence providers, which shall include, but not limited to: (i) initial and annual training requirements; (ii) minimum policies and procedures; and (iii) continuous quality improvements.

(2) To be eligible to receive state funds, a sexual assault and domestic violence service provider shall adhere to the uniform minimum service standards; provided, however, that sexual assault and domestic violence service providers completing a program improvement plan or corrective action plan pursuant to paragraph 2 of subsection (c) shall be eligible to receive state funds.

(c)(1) The executive office of health and human services shall annually file a report with the commission. The report shall include, but not be limited to: (i) a list of sexual assault and domestic violence service providers in compliance with the uniform service standards; and (ii) a list of sexual assault and domestic violence service providers that have violated the uniform service standards and what violation has occurred.

(2) Sexual assault and domestic violence service providers shall complete a program improvement plan, developed by the commission, after the first violation of the uniform standards. Sexual assault and domestic violence service providers shall complete a corrective

95 action plan, developed by the commission, after a second or subsequent violation of the uniform
96 service standards.

97 (3) The commission shall annually file a report with the executive office of health and
98 human services regarding sexual assault and domestic violence service providers compliance
99 with the uniform service standards. The report shall include:

100 (i) the number of sexual assault and domestic violence service providers in compliance
101 with the uniform service standards;

102 (ii) the number of sexual assault and domestic violence service providers under a
103 program improvement plan; and

104 (iii) the number of sexual assault and domestic violence service providers enrolled in a
105 corrective action plan.

106 The executive office of health and human services shall publish the report on its website
107 within 30 days of receipt.

108 (d) A sexual assault and domestic violence service provider shall not qualify for state
109 funds if it discriminates in its admissions or provision of services on the basis of race, religion,
110 color, age, disability, marital status, gender identity, sexual orientation, national origin or
111 ancestry.